

**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

**DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,**

Plaintiffs,

v.

Case No. 3:18cv1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

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CORRECTED* FINAL JUDGMENT

For the reasons stated in the Order on Motions for Summary Judgment (Doc. 150) and on the record at the bench trial on June 17, 2020, it is

ORDERED that:

1. Judgment is entered in favor of Plaintiff, DeepGulf, Inc., on Count I of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United States Patent number: 8146667; United States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Patent Publication number: 20060130729; and any and all undisclosed inventions and / or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the

* Corrected only as to a typographical error in the last sentence of paragraph 1.

date of this judgment. Defendant shall not use these intellectual properties for his personal gain without DeepGulf's express consent.

2. Judgment is entered in favor of Defendant on Counts II through IX¹ of the Complaint, and Plaintiffs shall go hence without day on those claims.
3. Judgment is entered in favor of Plaintiffs on Counts I through IV of Defendant's Counterclaims, and Defendant shall go hence without day on those claims.
4. The Clerk shall close the file.

DONE and ORDERED this 2nd day of July, 2020.

T. Kent Wetherell, II

T. KENT WETHERELL, II
UNITED STATES DISTRICT JUDGE

¹ The accounting claims in Count IX of the Complaint and Count I of Defendant's Counterclaims are not causes of action but remedies tied to other counts. *See* Doc. 150, at 11-12 (citing *Zaki Kulaibee Establishment v. McFliker*, 771 F.3d 1301, 1310 n.21 (11th Cir. 2014)).